

25SMCV05350 25SMCV05350

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C09%2F17%2F2026

Source SHA-256: 59cdb428a4da20a38b151d6a2d313f01cfaf923c3f0e9b5967a26601e9d37c0d

Case Number: 25SMCV05350 Hearing Date: September 17, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ARARAT HOLDINGS, LLC, et al.,

Plaintiffs,

v.

KDA CONSTRUCTION, INC., et al.,

Defendants.

Case No.: 25SMCV05350

Hearing Date: September 17, 2026

[TENTATIVE] order RE:

PLAINTIFF'S MOTION FOR SUMMARY

JUDGMENT

BACKGROUND

This is a fraud case. Plaintiff Ararat Holdings LLC owns three real properties which sustained damage in the 2025 Palisades fires, all located on Lachman Lane (the "Properties"). (SOF 3.) Plaintiff hired Defendant KDA Construction Inc. and its principal, Abel Hernandez to repair damage to the Properties. (SOF 4.)

KDA is a California corporation, and its Statement of Information (filed with the Secretary of State) describes its business as "General Construction". (SOF 5-6.) Hernandez is KDA's only director. (SOF 7.)

KDA and its principal, Hernandez, were not duly licensed contractors during the times relevant to this action. (SOF 14, 16.) KDA did not become licensed until March 20, 2026. (SOF 17.) KDA and Hernandez have also admitted that the work they performed on the Properties was construction work. (SOF 10.)

Ararat paid KDA \$242,501.92, and it paid Hernandez \$46,464.69, for labor and materials provided at the Properties. (SOF 18.) All payments were made directly to either KDA or Hernandez only; no payments were ever made to workers of KDA or Hernandez. (SOF 19.)

Ararat's complaint alleges a single claim for fraud. KDA and Hernandez counter-sued Ararat alleging breach of contract, common count/quantum meruit and fraud/intentional misrepresentation. The Court sustained a demurrer to KDA and Hernandez's cross-complaint without leave to amend. The Court concluded that the cross-complaint was barred as a matter of law under section 7031 of the Bus. & Prof. Code because KDA and Hernandez were not duly licensed contractors at the time the work was performed.

This hearing is on Ararat's motion for summary judgment. Ararat argues that there is no triable issue that KDA and Hernandez were not licensed contractors at the time they did the work on the Properties, and therefore, under California law, they must disgorge the amounts paid to them. There was no opposition filed.

LEGAL STANDARD

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Id.)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].)

Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility." (Id. at 840 [cleaned up]; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

REQUEST FOR JUDICIAL NOTICE

Ararat requests judicial notice of (1) the Statement of Information for KDA Construction Inc., filed with the Office of the Secretary of State, on April 11, 2025, and (2) the Verified Certificate of Non-Licensure from the Contractor's State License Board. The Court grants the request pursuant to Evid. Code § 452, subd. (c) which allows the court to take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code, § 452, subd. (c); Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, fn. 3 (taking judicial notice of statement of information); (Rodas v. Spiegel (2001) 87 Cal. App. 4th 513, 518 (taking judicial notice of state contractors' license board's decision and order).)

DISCUSSION

Ararat's sole claim is one for fraud. Yet the motion for summary judgment seems to skip over this rather significant fact. Ararat's motion argues there is no triable issue that (1) KDA and Hernandez are not licensed contractors, (2) they performed construction work and therefore should have been licensed under California law, and (3) they were paid large sums of money by Ararat that should now be disgorged. But these facts do not lead to a conclusion that there was fraud.

Ararat has put forth no evidence that KDA and Hernandez falsely represented they were licensed contractors, that they intended to defraud Ararat or that Ararat actually and justifiably relied on the misrepresentation when it retained them and paid their invoices. There is simply no showing that there is no triable issue on each of the elements required to prove fraud.

On a motion for summary judgment, the pleadings define the scope of the issues. (FPI Dev. Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.) A motion for summary judgment is limited to the issues raised by the pleadings. (Lewis v. Chevron (2004) 119 Cal.App.4th 690, 694.) A plaintiff cannot rewrite his claim on a motion for summary judgment.

CONCLUSION

Based on the foregoing, the Court DENIES Ararat's motion for summary judgment.

IT IS SO ORDERED.

DATED: September 17, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court